

District, or its counsel, Amber Smith, Esq.

Analysis

California Rules of Court (CRC) Rule 9.40 allows this Court to grant a written application for leave to appear as Counsel *Pro Hac Vice* to an applicant who is not a member of the State Bar of California, but who is admitted into and is in good standing with the highest court of any other state.

Upon review, the Court finds that the verified application of Joseph J. Zonies declares facts under penalty of perjury to support the application under CRC Rule 9.40. Mr. Zonies is an attorney licensed to practice in the State Courts of Colorado and before the United States District Court for the District of Colorado. He is employed by Zonies Law LLC and is not a member of the California State Bar, nor is he a resident of the State of California. He does not have regular employment or substantial business in California. He represented to the Court that he not been suspended, disbarred or resigned as counsel. No court has denied his application to be admitted as *Pro Hac Vice*.

After considering the moving papers, and applying the relevant law, the Court makes the following findings and orders.

Ruling

1. No timely opposition was filed with the Court. Defendant's motion is **granted**. Joseph J. Zonies, Esq. is admitted to appear as Counsel *Pro Hac Vice* for the duration of this case. No appearance is required at the hearing on June 17, 2026.
2. Plaintiff's Counsel is directed to prepare and e-file a proposed order granting conforming to the foregoing ruling no later than five (5) days from the date of this hearing. Counsel is ordered to attach a copy of this tentative ruling to the proposed order.

14. 9:00 AM CASE NUMBER: C25-01899
CASE NAME: BRENTWOOD SUNSET 2010, LLC VS. VIRGINIA PETERSON
HEARING ON SUMMARY MOTION FILED BY PLAINTIFF BRENTWOOD SUNSET 2010
FILED BY: BRENTWOOD SUNSET 2010, LLC
TENTATIVE RULING:

The motion of Plaintiff Brentwood Sunset 2010, LLC for summary judgment, unopposed by any party, is **granted**.

Background

This is a breach of contract action arising from Defendants' failure to pay rent, common area maintenance charges, and tenant improvement loan installments under a commercial lease and two amendments thereto. Plaintiff Brentwood Sunset 2010, LLC is the landlord. Defendant Push Ups 2 Pin Ups LLC was the tenant. Defendants Virginia Peterson and LaTasha Renee are personal guarantors of the lease and both amendments.

On July 2, 2025, Plaintiff filed this action for breach of lease and personal guarantee. On February 7, 2026, Plaintiff filed this motion for summary judgment or, in the alternative, summary adjudication.

The motion was served on Defendants by email through their then-counsel on February 18, 2026. Defendants did not file an opposition. On June 17, 2026, Defendants filed a substitution of attorney and are now self-represented.

Legal Standards on Summary Judgment

Under Code of Civil Procedure section 437c(c), a motion for summary judgment "shall be granted if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law." (Code Civ. Proc. § 437c(c).)

A plaintiff as the moving party does not need to disprove the defendant's defenses; a plaintiff moving for summary judgment meets its burden of showing there is no defense to the claim if it proves each element of the cause of action that would entitle the plaintiff to judgment on that cause of action in its favor. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 849, 853; *Paramount Petroleum Corp. v. Superior Court* (2014) 227 Cal.App.4th 226, 241; Code Civ. Proc. § 437c(p)(1).) "Once the plaintiff or cross-complainant has met that burden, the burden shifts to the defendant or cross-defendant to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto.

Analysis

Plaintiff brings this action against Defendant Push Ups 2 Pin Ups LLC for breach of the Office Lease Agreement and its amendments, and against Defendants Virginia Peterson and LaTasha Renee for breach of their personal guarantees. Peterson and Renee each guaranteed the original lease, the First Amendment, and the Second Amendment, rendering them independently liable for Defendants' obligations under the lease. Plaintiff moves for summary judgment as to all three Defendants on both grounds.

The elements of a cause of action for breach of contract are (1) the existence of a contract; (2) plaintiff's performance or excuse for nonperformance; (3) defendant's breach; and (4) resulting damage. (*Wall Street Network, Ltd. v. N.Y. Times Co.* (2008) 164 Cal.App.4th 1171, 1178.)

The motion sets forth the following supporting facts as undisputed.

Plaintiff Brentwood Sunset 2010, LLC owns commercial property located at 2010 Elkins Way, Brentwood, California. (Plf.'s Separate Statement of Undisputed Material Facts [UMF] No. 1; Strauss Decl., ¶ 2.) On February 4, 2019, Brentwood entered into an Office Lease Agreement with Defendant Push Ups 2 Pin Ups LLC (erroneously sued as Push Ups to Pin Ups LLC) for approximately 7,934 square feet of the property (Lease). (UMF No. 2; Strauss Decl., ¶ 3; Exh. 1.) The lease term commenced October 1, 2019, and ran for 63 months. (UMF No. 3; Strauss Decl., ¶ 4; Exh. 1, ¶ 1.06.) Defendants Virginia Peterson and LaTasha Renee executed personal guarantees for the lease. (UMF No. 5; Strauss Decl., ¶ 6; Exh. 1, p. 35.)

The parties executed two amendments to the Lease. On September 9, 2020, they entered into a First Amendment that adjusted the premises square footage, base rent, CAM charges, and lease term, and provided a Covid-related rent reduction. (UMF Nos. 6-7; Strauss Decl., ¶¶ 7-8; Exh. 2.) Both Peterson and Renee guaranteed the First Amendment. (UMF No. 8; Strauss Decl., ¶ 9; Exh. 2, p. 5.) On March

29, 2022, the parties entered into a Second Amendment that extended the lease term to March 31, 2031, restructured a tenant improvement loan of \$187,076.92 at six percent interest with a 96-month repayment period commencing April 5, 2023, and provided an early termination option. (UMF Nos. 9, 11-12; Strauss Decl., ¶¶ 10, 12-13; Exh. 3, ¶¶ 2.b, 2.d, 2.e, 1.06.) Both Peterson and Renee guaranteed the Second Amendment. (UMF No. 13; Strauss Decl., ¶ 14; Exh. 3, p. 3.)

Beginning in January 2025, Defendants breached the Lease, First Amendment, and Second Amendment by failing to pay rent, CAM charges, and tenant improvement loan installments. (UMF No. 14; Strauss Decl., ¶ 15.) Defendants vacated the property on May 16, 2025. (UMF No. 15; Strauss Decl., ¶ 16.) Brentwood re-let the property on June 1, 2025, for a term of two years. (UMF No. 16; Strauss Decl., ¶ 17.) At that point, unpaid rent totaled \$44,957.37 and unpaid CAM charges totaled \$9,292.14. (UMF Nos. 17-18; Strauss Decl., ¶¶ 17-18; Exhs. 1-3.) Brentwood applied the security deposit, reducing the rent balance to \$34,963.65 and the CAM balance to \$6,194.76. (UMF No. 20; Strauss Decl., ¶ 21; Exhs. 1-3.) The outstanding tenant improvement loan balance is \$150,050.38, plus six percent interest accruing from March 1, 2025. (UMF No. 19; Strauss Decl., ¶ 19; Exhs. 1-3.)

This evidence carries Plaintiff's initial burden of proof with respect to the breach of contract cause of action. It shows the existence of the parties' lease agreement and amendments thereto, Defendants' obligation to pay rent, CAM charges, and tenant improvement loan installments, Defendants' default beginning in January 2025, and resulting damages. The burden thus shifted to Defendants to demonstrate the existence of triable issues of material fact as to any of these elements.

Defendants did not oppose the motion and therefore have not met that burden.

Disposition

Summary judgment is **granted**. Plaintiff shall e-file a proposed order, attaching this ruling, and judgment within 10 days and shall serve and file notice of entry of same.

15. 9:00 AM CASE NUMBER: MSC20-01311
CASE NAME: MICHAEL PRICE VS. STARLIGHT MARINE SERVICES, INC.
***HEARING ON MOTION IN RE: FINAL APPROVAL SET BY THE COURTROOM**
FILED BY:
TENTATIVE RULING:

Summary

Plaintiff Michael Price and Douglas Anderson and the Proposed Class ("Plaintiffs") filed a Motion for Final Approval of Class Action Settlement ("Motion") against Defendant Starlight Marine Services, Inc. ("Defendant") as described herein. The Motion is **granted**. No appearance is required at the June 17, 2026 hearing. A hearing on Plaintiff's Motion for Final Approval of Attorney's Fees is calendared for November 25, 2026

Background

Plaintiffs Michael Price and Douglas Anderson filed a wage and hour class action against Starlight Marine Services, Inc. on July 16, 2020, alleging violations including failure to pay wages and overtime, failure to provide meal breaks, and violations of the California Labor Code and Business & Professions Code. The plaintiffs also pursued claims under the Private Attorneys General Act (PAGA). Following